TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Zoning Board of Appeals

Tamara McCaslin – Chair
Jamie Lease– Vice-Chair
Robert Keller – Secretary
Marshall Swanson – Member
Jerry Bridges – Township Board

Dick Hassberger – Zoning Administrator
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, August 10, 2022

The meeting was called to order by Chair McCaslin at 7:00 pm.

Roll Call:
Present – Board Members: McCaslin, Lease, Keller, Bridges, Swanson,
Staff: Zoning Administrator Dick Hassberger, Recording Secretary Sherrod
Absent – 0
Public – 3

Approval of Agenda: Bridges moved to approve the agenda as amended by Chair McCaslin; Lease seconded. Motion passed with all in favor.

Public Comment: Chair McCaslin stated the following:

a. Agenda items only please
b. ALL comments are to be directed to the chair
c. Each speaker to give their name and address
d. A time limit may be imposed, chair reserves the right to terminate the presentation or ask for a summation if comments are repetitive.

There will be 3 Public Comments periods.

Approval of Minutes:

Regular Meeting minutes of Wednesday, April 13, 2022 – It was moved by Bridges and seconded by Lease to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a Variance was received on May 19, 2022, from Warren Schobert for property located at 101 Maple Street. Consisting of T18N R5W sec 30 lot one first addition Pinora Park Supervisors Plat. He is requesting approval for a privacy fence in the backyard. His property is considered a corner lot which makes it a 3-front yard lot.

Public Notice: Notice of public hearing was posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* July 21, 2022:

The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, August 10, 2022, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal of Warren Schobert for a variance on the property #010-400-001-00, 101 Maple Street, Lake, Michigan 48632. This appeal is to allow the construction of a privacy fence which does not meet zoning ordinance requirements. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, August 9, 2022.

Notifications by mail were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA.

Explanation of Practical Difficulty: Chair McCaslin read the following brief explanation of the "practical difficulty" requirements needed for a person to request a zoning variance:

The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Twp. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

A. Practical Difficulty: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to unique circumstances specific to the property such as its narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property
B. Circumstances: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. That the variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
C. Ordinance Purpose Adherence: Does this request relate to properties other than described in the Variance request?
D. Variance Harmony: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
E. Effects: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
F. Property Use: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
G. Minimum Variance: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application:

The following is the text of the Zoning Permit denial:

From a letter dated June 11, 2020, from former Zoning Administrator Roger Carey, he writes: "I have received a complaint of a fence in your front yard exceeding the allowed height of 36 inches. This is in violation of our Lincoln Township Ordinance 44, Section 20.11 Fences and Walls, paragraph 2, 6, and 9."

Purpose: The purpose of this hearing is to determine if indicators exist to grant a variance as the zoning permit filed by the residents on August 19, 2020, was denied. Application for a variance was received on May 19 , 2022, applicant Warren Schobert for property located at 101 Maple Street , Tax ID#010-400-001-00. The following is the reason for the variance, to allow a wood privacy fence in the backyard, which is out of compliance with the Lincoln Township Zoning Ordinance due to it being considered a corner lot.

Correspondence & Communications to ZBA: None

Presentation by Lincoln Township Zoning Administrator:
ZA Hassberger explained that he worked from files that had been prepared by former ZA Carey.

1. The fence in question was erected without a Zoning Permit. At the time of installation, the fence was non-conforming in size and placement.
2. It appears, from the file documents, that the applicant was less than cooperative in correcting the violations that he created.
3. Fence, as it stands, may be detrimental to the neighbors to the north
4. Former ZA Carey, in 2019, interpreted the ordinance using the Section 21 definition of Corner Lot Frontage.
5. Ordinance 44 as amended in 2021 clarifies Triple Lot Frontages and does nothing to bring this fence into compliance.

There were no questions for ZA Hassberger

Presentation by the Petitioner: Nicole Speer spoke for the applicant, Warren Schobert.

She explained that ZA Carey noted that their circumstance is very unusual. They put the fence up because they wanted to keep their 5 year old son safe well as have privacy. They did move the fence back.

ZBA Members Comments & Questions: No questions from the board.

Public Comment:
Nicole Speer stated again that they are simply looking for privacy and to have some backyard.

Chair McCaslin asked a clarifying question about where the fence originally was compared to where it is now. Instead of being at the front corner the fence is now at the back corner.

Public Comment Closed by Chair:

Discussion and further questions by ZBA Members without comments or questions from the public.

Bridges: the problem he has when a piece of property has 3 streets butting up against it, all 3 yards are front yards according to the zoning ordinance.

McCaslin wanted the group to look at the Ordinance 44 Section 20.11: Fences and Walls. She then read the text aloud. She confirmed that all members had been to visit the site to see the fence in question.

Chair McCaslin then went on to Section 20.15: Clear Vision Zones and read that text.

She then went on to the definitions section of the Zoning Ordinance, specifically the corner lot definition and then the amendment for the triple front property, August 3, 2021.

Bridges made a comment concerning liability issues for the owners concerning proper visibility. They can be liable if there is an accident on those roads.

Ms. Speer responded that they have moved those fences so that there is more visibility now.

Ms. Speer stated again that they have tried hard to comply and that they just want a backyard.

Without further questions or comments, McCaslin announced that the ZBA members will now work on their Finding of Facts.

ZBA Members Finalize Finding of Facts Form:

An Explanation of this process is given to the applicant that after the ZBA makes and accepts a motion to deny or approve the Variance Request the applicant may

wait to receive a final decision paper for court purposes. If the applicant does not want to wait for the final decision paper, please state your preferred method of receiving the final decision form, either by certified USPS mail and/or e-mail, and provide the correct addresses for each method.

Motion: McCaslin made the motion to deny the applicant, Warren Schobert's request at 101 Maple Street, Lake, Michigan 48632 for a privacy fence. The request does not comply with the Lincoln Township Ordinance 44, Section 20.11: Fences and Walls, and is considered a corner lot with 3 fronts, Section 20.15: Clear Vision Zones. The board finds that the proposed structure does not meet the guidelines for practical difficulty. Bridges seconded

Roll Call Vote: Bridges: Yes; Keller: Yes; Lease: Yes; McCaslin: Yes; Swanson: Yes. Motion passes; the appeal is Denied 5 to 0.

Public Comment: Ms. Speer asked about moving their official address.

Adjournment: Lease made a motion to adjourn; Bridges seconded. Motion passed with all in favor. Meeting adjourned at 7:50 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary